

**CHAPTER lix.**

An Act to change the name of the Commissioners for the harbour of Poole to increase the duties rates and charges leviable by the Commissioners and for other purposes. A.D. 1925.
[31st July 1925.]

WHEREAS by the Poole Harbour Act 1895 the Commissioners for the harbour of Poole (hereinafter called "the Commissioners") were constituted and incorporated and the then existing harbour undertaking of the mayor aldermen and burgesses of the borough of Poole as trustees of the quays and harbour of Poole was transferred to and vested in the Commissioners :

And whereas by the Poole Harbour Acts and Orders 1756 to 1922 powers and authorities have been conferred upon the Commissioners and their predecessors for the conservancy improvement and regulation of the harbour of Poole and for the construction of works and for other purposes :

And whereas under and by virtue of the Poole Harbour Act 1756 the Poole Harbour Order 1891 as confirmed by the Pier and Harbour Orders Confirmation (No. 3) Act 1891 and the Poole Harbour Act 1914 the Commissioners are authorised to charge levy and recover various duties rates and charges more particularly described by the said Acts and Order subject to increases in the amount of certain of such rates authorised temporarily by an order dated the thirteenth day of February one thousand nine hundred and twenty-five and made by the Minister of Transport under the Harbours

A.D. 1925. Docks and Piers (Temporary Increase of Charges) Acts
— 1920 to 1922 :

And whereas it is expedient that an increase in the amounts of the said duties rates and charges should be authorised :

And whereas it is expedient to change the name of the Commissioners and to make new provisions with reference to the qualification and election of the vice-chairman of the Commissioners and the qualification of traders' members :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short and
collective
titles.

1: This Act may be cited as the Poole Harbour Act 1925 and the Poole Harbour Acts and Orders 1756 to 1922 and this Act may be together cited as the Poole Harbour Acts and Orders 1756 to 1925.

Incorpora-
tion of
Part IV. of
Companies
Clauses
Act 1863.

2. Part IV. (Change of name) of the Companies Clauses Act 1863 is incorporated with and forms part of this Act Provided always that for the purposes of such incorporation the expression "company" in the said Part of the said Act shall be construed to mean the Commissioners.

Interpreta-
tion.

3. In this Act—

"The Commissioners" means the Commissioners for the harbour of Poole ;

"The Act of 1756" means the Poole Harbour Act 1756 ;

"The Order of 1891" means the Poole Harbour Order 1891 confirmed by the Pier and Harbour Orders Confirmation (No. 3) Act 1891 ;

"The Act of 1895" means the Poole Harbour Act 1895 ;

"The Act of 1914" means the Poole Harbour Act 1914 ;

“The Order of 1915” means the Poole Harbour [A.D. 1925.

Order 1915 as confirmed by the Pier and Harbour Orders Confirmation (No. 2) Act 1915;

“Vessel” includes ship barge lighter boat seaplane hydroplane and craft of every class or description however propelled;

“Goods” includes minerals and merchandise of every description.

4. From and after the passing of this Act the name of the Commissioners shall be “the Poole Harbour Commissioners” and under that name the Commissioners shall for the purposes of the Poole Harbour Acts and Orders 1756 to 1925 be a body corporate with perpetual succession and a common seal and have power to sue and be sued and to purchase take hold and dispose of lands and other property and all the other powers and privileges of a body corporate.

Change of
name of
Commis-
sioners.

5. As from the passing of this Act the several maximum duties rates and charges which the Commissioners are authorised to charge levy and recover in respect of vessels and goods under and by virtue of the Act of 1756 the Order of 1891 and the Act of 1914 are hereby increased by an amount equal to one hundred per centum thereof and the said Acts and Order shall be read and have effect accordingly.

Increase of
maximum
duties rates
and charges.

6. As from the passing of this Act the Poole Harbour (Temporary Increase of Charges) Order 1925 shall cease to have effect.

Annulment of
Temporary
Increase of
Charges
Order.

7. From and after the passing of this Act where the registered tonnage of any vessel in respect of which the Commissioners are entitled to charge levy and recover a boomage rate is equal to less than forty per centum of the gross tonnage thereof the boomage rate shall be calculated on forty per centum of the gross tonnage of the vessel instead of on the registered tonnage thereof.

Calculation
of boomage
rate.

8.—(1) If the tonnage of goods shipped or unshipped within the limits of the harbour of Poole in on or out of any vessel in respect of which the Commissioners are entitled to charge levy and recover a boomage rate is equal to less than eighty per centum of the registered tonnage of such vessel or of the actual tonnage on which

Rebates on
boomage
rate.

A.D. 1925. — the boomage rate is to be calculated under the provisions of the preceding section of this Act whichever is the greater the Commissioners may if they think fit allow a discount or rebate in respect of such vessel not exceeding in any case fifty per centum of the boomage rate.

(2) If the registered tonnage of any vessel in respect of which the Commissioners are entitled to charge levy and recover a boomage rate is less than two hundred tons the Commissioners may if they think fit allow a discount or rebate in respect of such vessel not exceeding in any case twenty-five per centum of the boomage rate.

Revision
of rates and
charges.

9.—(1) If at any time it is represented in writing to the Minister of Transport (in this section referred to as “the Minister”)—

(a) by any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose; or

(b) by the Commissioners

that under the circumstances then existing all or any of the duties rates and charges authorised in pursuance of this Act should be revised the Minister may if he thinks fit make an order revising all or any of such duties rates and charges as aforesaid and may fix the date as from which such order shall take effect and thenceforth such order shall be observed until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section. Provided that before making an order under this section the Minister shall cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section.

(2) No application may be made under this section for a general revision of the duties rates and charges for the time being authorised under this Act within twelve months after the date of an order made by the Minister for a general revision thereof and no application may be made for a revision of any particular duty rate or charge within twelve months after the date of an order made by the Minister for a general revision or of any previous application for a revision of the particular duty rate or charge in question.

(3) The provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section:— A.D. 1925.

(a) As if the Minister were referred to therein in lieu of the Board of Trade;

(b) As if the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or in the event of the said advisory committee ceasing to exist some persons with similar qualifications to be appointed for the purpose by an order of the Minister under section 2 of the said Act of 1874; and

(c) As if in section 4 of the said Act of 1874 the words “under the seal of the Minister of Transport” were substituted for the words “by writing under the hand of the president or of one of the secretaries of the Board.”

(4) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths.

10.—(1) The Commissioners shall within two months after the date to which their annual accounts and balance sheet are made up send a copy of the same to the Minister of Transport and the sixteenth section of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include the Commissioners and any and every such account. Annual account to be sent to Minister of Transport.

(2) The Commissioners shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds for every week or part of a week during which

A.D. 1925.

they refuse or neglect to comply with the foregoing provisions.

(3) The accounts of the Commissioners referred to in this section and in section 50 of the Harbours Docks and Piers Clauses Act 1847 respectively shall be made up to the end of the twenty-fifth day of March in each year.

Vice-chair-
man of
Commis-
sioners.

11.—(1) At the first annual meeting of the Commissioners held after the passing of this Act the Commissioners shall by the majority of the votes of the Commissioners present elect one of their body (not being a member elected by the council of the borough of Poole) to be their vice-chairman until the next annual meeting of the Commissioners when and at every subsequent annual meeting the Commissioners shall in like manner elect a vice-chairman for the ensuing year.

(2) In case the vice-chairman of the Commissioners die or resign or cease to be a Commissioner or otherwise become disqualified to act as such the Commissioners present at the meeting of the Commissioners held next after the occurrence of such vacancy shall choose some other of their body (not being a member elected by the council of the borough of Poole) to fill such vacancy and the vice-chairman so elected shall continue in office so long only as the person in whose place he was elected would have been entitled to continue vice-chairman.

(3) If at any meeting of the Commissioners the chairman be not present the chair shall be taken by the vice-chairman and if neither chairman nor vice-chairman be present one of the Commissioners present shall be elected chairman of such meeting by the majority of the votes of the Commissioners present at such meeting.

Qualifica-
tion of
traders'
members.

12. Any person of full age fulfilling the following conditions and no other person shall be qualified to be a traders' member (that is to say) :—

(a) Having by himself or by any person on his behalf paid or being partner in a firm which have paid to the Commissioners harbour rates or dues (whether on goods or shipping or both) to the amount of five pounds or upwards during the year ending the twenty-fifth day of March immediately preceding the election and being at

the date of nomination either a ratepayer of the borough of Poole or having a place of residence within a radius of ten miles of the town hall at Poole; or

A.D. 1925.

- (b) Being qualified under the provisions of the section of this Act of which the marginal note is "Nominees of joint stock companies qualified to be traders' members":

Provided that only one partner in any firm shall be qualified by the payment of harbour rates or dues by that firm and in case more than one partner in any firm are nominated at any election the nomination of the partner first nominated shall alone be valid.

13. Where any company incorporated by Act of Parliament or registered under the Companies Acts 1908 to 1917 or any Act amending or extending those Acts and having an office or place of business within the borough of Poole shall have paid to the Commissioners harbour rates or dues (whether on goods or shipping or both) to the amount of five pounds or upwards during the year ending the twenty-fifth day of March immediately preceding the election such company may from time to time by notice in writing under their common seal addressed to the clerk to the Commissioners nominate one person of full age being a director or general manager or local branch manager of the company and any person so nominated and accepting such nomination by writing addressed to the clerk to the Commissioners shall be qualified to be a traders' member and shall subject to the provisions of the Act of 1895 continue so qualified so long as the company nominating him shall retain the said qualification or until he dies or his nomination is withdrawn by the company by whom he was nominated.

Nominees
of joint
stock
companies
qualified
to be
traders'
members.

14. The following provisions of the following Act and Orders are hereby repealed (that is to say):—

The Order of 1891—

Section 22 (Annual account to be sent to Board of Trade);

Section 23 (Rates to be revised):

The Act of 1895—

Section 13 (Election of vice-chairman);

Section 14 (Qualification of traders' members):

[Ch. lix.]

*Poole Harbour
Act, 1925.*

[15 & 16 GEO. 5.]

A.D. 1925.

The Order of 1915—

Subsection (2) of Section 11 (Provisions of Act of
1895 as to elections to apply).

Costs of
Act.

15. The costs charges and expenses of and incidental
to the preparing for obtaining and passing of this Act or
otherwise in relation thereto shall be paid by the Com-
missioners.

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